

HEADNOTE

“1. Whilst Article 2(2) of the Scale of Recoverable Costs provides for an adjustment to the applicable ceiling on recoverable costs "in the event that the requesting party is unsuccessful", the Court must also take this provision into account when assessing an application for security, since in such an assessment the Court assumes ab initio that the "requesting party ... will be unsuccessful" (cf. Article 69(4) of the UPCA "may be liable to bear").

2. The value of the dispute is definitively determined in the context of the Interim Conference (see R.104(i) of RoP in conjunction with R. 370.6 RoP). An assessment of the value of the dispute in the context of an assessment regarding an application for security is provisional in the sense that it is not binding on either the Court or the Judge-Rapporteur when it comes to the final determination of the value of the claim or the setting of the ceiling (including the manner in which that ceiling was calculated).”

COURT
Local Division in Brussels

PROCEEDINGS
Procedural order

PATENT
EP 3 841 735

METHOD AND SYSTEM FOR
IMPROVING THE PRINT QUALITY

KEYWORDS

R. 158 RoP

Art. 2(2) Scale of Recoverable Costs

SME

Article 69 Legal costs

SUMMARY

The Local Division in Brussels issued a procedural order. The patent at issue relates to a method and system for improving print quality. According to the headnotes of the decision, Article 2(2) of the Scale of Recoverable Costs allows adjustment when a requesting party is unsuccessful. The Court must apply this provision when assessing security applications as well. This is because the Court assumes from the outset that the requesting party will be unsuccessful. Therefore, the provision on liability to bear costs applies to security assessments too. Additionally, the value of a dispute is definitively determined during the Interim Conference. However, any value assessment made when considering a security application remains provisional only. This means that such a provisional assessment does not bind the Court or Judge-Rapporteur later. In particular, it does not bind them when they finally determine the claim value or set cost ceilings.